

Amendment No. 2 to SB0256

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 256*

House Bill No. 601

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-26-105, is amended by deleting subsections (a) and (b) and substituting the following:

(a) There is made available to convicted defendants in criminal cases a proceeding in the nature of a writ of error coram nobis, to be governed by the same rules and procedure applicable to the writ of error coram nobis in civil cases, except insofar as inconsistent herewith. Notice of the suing out of the writ shall be served on the district attorney general, by the convicted defendant, in cases in which the conviction occurred following a trial, except in cases where a defendant has been sentenced to death, where notice shall be served on the attorney general and reporter. In cases in which the defendant entered a guilty, best interest, or no contest plea, the suing out of the writ shall commence by order of the court for claims jointly presented for relief by the district attorney general and the convicted defendant. A judge does not have authority to order the writ to operate as a supersedeas. The court has authority to order the person having custody of the petitioner to produce the petitioner in court for the hearing of the proceeding.

(b) The relief obtainable by this proceeding shall be confined to errors dehors the record and to matters that were not or could not have been litigated on the trial of the case, on a motion for a new trial, on appeal in the nature of a writ of error, on writ of error, or in a habeas corpus proceeding. Relief shall also apply to pleas of guilt, best interest, or no contest. Upon a showing by the defendant that the defendant was without

fault in failing to present certain evidence at the proper time, a writ of error coram nobis will lie for subsequently or newly discovered evidence relating to matters which were litigated at the trial, or unknown to the defendant at the time of plea, if the judge determines that such evidence may have resulted in a different judgment, had it been presented at the trial, or known at the time of plea.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.